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Access to the Courts

For much of the 19th and 20th centuries, prisoners were viewed as “slaves of the state” (as decided by the U.S. Supreme Court in 1871, *Ruffin v. Commonwealth*), and due to the crime(s) they committed and the sentences imposed, they were not considered “persons” in the eyes of the law. Prisoners had no civil rights or any type of legal protection. They had no legal standing in court. Therefore, there was no need for them to have access to the courts. This judicial view of prisoners, which was followed by the courts from the *Ruffin* decision up until the 1960s, was known as the “hands-off doctrine.” It rendered prisoners essentially “civilly dead” without the ability to obtain any legal remedy even if the prisoner’s claim had underlying legal merit. The development of the hands-off doctrine can be traced to one or more of the following rationales: separation of powers doctrine, low level of judicial expertise in penology, fear that judicial intervention would undermine prison discipline, and fear that giving inmates access to the courts would result in a surge in prisoner civil litigation.

The courts were particularly concerned that by reviewing prisoner civil actions, the courts would interfere with, and undercut the ability of, prison administrators to maintain security and control over their facilities and their ability to promulgate necessary correctional policies to do so. Judges did not want to hinder, or second-guess, the ability of prison officials to carry out the objectives of the correctional institutions. This view was consistent with *Coffin v. Reichard* (1944), which stated that a convicted offender retains all the rights that citizens in general have, but when those rights interfere with the administration or correctional institutions’ policies, then the prisoner has no legal recourse. Another key reason for the lack of judicial action was the conservative and philosophical nature of the Supreme Court justices that guided their decisions in the late 1800s up until the Warren Court in the 1960s.

Despite the hands-off rationale and conservative nature of the courts, which denied inmates civil access to the courts, there were a handful of prisoner lawsuits prior to the 1960s that slowly opened the doors for inmates to seek judicial redress. One of the first U.S. Supreme Court cases pertaining to prisoners’ access to the courts was in 1941: *Ex parte Hull*.

In *Hull*, the court considered whether an inmate had the constitutional right to judicial intervention to prevent their habeas corpus petitions from being screened by prison officials. Despite often being criminal in nature, habeas corpus petitions are considered and treated by the courts as civil actions. The court stated that access to the courts is a basic requirement of due process and is protected—even for convicted prisoners—under the due process clause of the Fourteenth Amendment.

Despite the precedent of *Hull*’s judicial intervention, the courts however still maintained a hands-off approach when dealing with prisoner lawsuits. By the late 1950s under the Warren Court, the U.S. Supreme Court heard two more key cases that addressed prisoners seeking redress and their access to the courts: *Griffin v. Illinois* (1956) and *Burns v. Ohio* (1959). Both cases dealt with indigent prisoners. In the *Griffin* case, the court established that indigent prisoners have the same rights to an appellate review as any other person. In the *Burns* case, the U.S. Supreme Court made it clear that a state cannot require a filing fee when an inmate is seeking an appeal.

Despite the few prisoner lawsuits that did reach the attention of the state and federal courts, the judiciary continued to stay away from prisoner grievances until *Cooper v. Pate* (1964). In the *Cooper* case, the U.S. Supreme Court ruled that inmates could bring a suit against prison administrators under Title 42, Section 1983, of

the Civil Rights Act. The U.S. Supreme Court made it clear that prisoners must have an effective remedy for prison abuse. This case is considered by legal scholars to have effectively ended the hands-off doctrine that had dominated the judiciary for over a century.

In 1969, the U.S. Supreme Court heard *Johnson v. Avery*, a case involving a Tennessee prisoner who violated prison regulations by helping another inmate prepare writs. The court stated that prisoners must have access to the courts, and if inmates are able to assist other inmates in their legal claims, the prison administrators, staff, and policies should not interfere.

In the 1974 case, *Wolff v. McDonnell*, the U.S. Supreme Court heard a class action lawsuit from a Nebraska inmate that alleged that the prison disciplinary proceedings violated the due process clause of the Fourteenth Amendment. In the majority opinion, the court famously stated that “(t)here is no Iron Curtain between the Constitution and the prisons of this country.” The court found that due process was violated when the prison failed to provide written notice of the charges against the inmate, a written statement of the evidence that would be used against him, and the opportunity for the inmate to call witnesses and present evidence in his own defense. The suit also objected to the prison officials inspecting privileged mail between inmates and their attorneys, which the inmates asserted unconstitutionally “chilled” their ability to freely access the courts without fear of retaliation by the prison officials and employees.

Finally, in *Bounds v. Smith* (1977), accessing the courts was further articulated as a constitutional right for prisoners. The courts stated in *Bounds* that inmates must have *meaningful* access to the courts by providing inmates access to a reasonable law library or the option to hire jailhouse lawyers to assist with filing a petition. These key rulings effectively changed the legal status of prisoners and gave them unprecedented access to the courts.

The right of access to the courts by prisoners, however, is not absolute or automatic; there are limitations. In *Lewis v. Casey* (1996), inmates in Arizona claimed that their access to the courts was denied because the prison administration did not provide inmates with an adequate law library and other legal assistance. Though the lower court decision agreed with the inmates, the U.S. Supreme Court reversed more than 20 years of prisoner access to the court’s case law originally established by the *Bounds* decision. The court stated that a prisoner must prove to the courts that prison officials or a prison policy prevented the inmate from asserting a “non-frivolous claim” and suffered an “actual injury.” In other words, a prisoner must have a legitimate underlying claim and demonstrate to the court that an “injury” occurred because the prison official or institutional policy prevented that inmate from filing and/or proceeding with their claim. The *Lewis* decision effectively redefined prisoners’ rights and further limited inmates’ access to the courts.

Today, while prisoners still are not given unfettered access to the courts, prisoners are able to file lawsuits in a number of different ways. There are three basic types of lawsuits an inmate can file to access the courts: (1) a habeas corpus suit, (2) a civil rights suit, and (3) what is typically categorized as “other suits” or “mandamus suits” or civil actions.

Habeas corpus suits are federal civil petitions filed by inmates who challenge the constitutionality of their criminal convictions and sentences. The habeas court is charged with the responsibility of determining if the state court verdict and rulings on appeal violated any federal constitutional right that the defendant retains. The writ of habeas corpus is a crucial tool for prisoners to use when questioning the legality of their imprisonment.

Regardless of whether or not the inmate is confined as a state or federal inmate, if the claim is based on a violation of a provision of the federal constitution, it may be asserted in federal court as a civil rights suit pursuant to 42 U.S.C. §1983. If the civil rights suit is brought in state court, it can be removed by the defendants to be heard by the U.S. District Court located in the jurisdiction in which the prison where the violation occurred is located. So long as the defendant has personal involvement in the underlying constitutional violation or the imposition of the unconstitutional policy, practice, or custom, inmate plaintiffs may initiate lawsuits against jailers, sheriffs, correctional officers, administrators, and even other inmates. Examples of this type of case include claims of denial of the right to access the courts in violation of the Fourteenth Amendment (*Johnson v. Avery*, 1969), denial of freedom of expression and religion in violation of the First Amendment (*Cooper v. Pate*, 1964), denial of freedom of association in violation of the First Amendment (*Jones v. North Carolina Prisoners’ Labor Union, Inc.*, 1977), freedom from (excessive force) cruel and unusual punishment in violation of the Eighth Amendment (*Holt v. Sarver*, 1969), freedom from unreasonable searches and seizures in violation of the Fourth Amendment (*Bell v. Wolfish*, 1979), the right to reasonable medical treatment pursuant to the Eighth Amendment (*Newman v.*

State of Alabama, 1974), and the limited due process rights related to grievance procedures (*Procunier v. Martinez*, 1974).

In a civil rights suit, it is not sufficient for an inmate to allege that the defendant(s) acted merely negligently. It is the inmate's burden to prove, by a preponderance of the evidence that the defendants acted either with "deliberate indifference" to the inmate's constitutional rights or with "willful disregard" to those rights. These are considerably higher legal standards than negligence and require proof of a higher level of intent on the part of the defendant than in negligence claims.

Some civil rights actions that are filed warrant the attention of the courts, but there are also a significant number of frivolous lawsuits that ultimately hinder the courts' ability to function. According to the Administrative Office of the U.S. Courts, the number of civil rights suits filed in U.S. District Courts pursuant to Title 42 USC § 1983 increased from fewer than 5,000 in 1970 to approximately 40,000 in 1996. However, with the passing of the Prisoner Litigation Reform Act in 1996 and the courts' standard of proof more difficult for prisoners, the number of civil rights petitions filed by prisoners was fewer than 23,000 in 2012.

In addition to habeas petitions and civil rights suits, prisoners can also file civil actions in state court based on violations of state statutory law or case/common law. Examples include "tort" claims of inmates who sustain personal injury due to the negligently maintained real property/real estate (i.e., a stair that the prison knew was uneven caused the inmate to fall and injure his knee) or negligent medical care provided by a privately contracted prison medical provider (i.e., a negligent medical decision made by the prison doctor, not the prison officials, which violated the professional medical standard of care one would reasonably receive outside of prison).

Another type of suit an inmate can file is a mandamus petition, which is filed under the Mandamus Act (28 U.S.C. § 1361). A mandamus lawsuit is filed when an administrative, executive, or judicial officer fails to perform his or her legal duty in providing rights and privileges to prisoners. However, these types of suits at the federal level are less frequent and seldom used.

Gaining access to the courts has given inmates the opportunity to challenge their convictions, improve living conditions, obtain better medical care, expand on legal services and materials, and exercise freedom of religion and expression, freedom of press, freedom from cruel and unusual punishment, the right to rehabilitation and treatment, and other due process rights.

While the U.S. Supreme Court in the 1990s limited some prisoners' rights, Congress also passed two critical statutes in 1996 that had a significant impact on prisoners accessing the courts. In 1996, Congress passed the Prison Litigation Reform Act (PLRA), which placed restrictions on prisoners' ability to access the federal courts. It was specifically aimed at reducing frivolous civil rights lawsuits brought by prisoners. The second act was the Antiterrorism and Effective Death Penalty Act (AEDPA) of 1996. This act limited the federal court's scope of review of state court findings and made it more difficult for prisoners to file multiple/serial habeas corpus petitions. Prisoners now have a one-year statute of limitation to file a habeas petition. That one-year time period is "tolled" or halted temporarily while the inmates exhaust their timely and properly filed appeals in state court. If the inmates wish to file a second/successive habeas petition, they must first seek permission to do so from the Court of Appeals but are still limited. The basis for appealing further to the U.S. Supreme Court are even more limited. Though prisoners have gained significant access to the courts over the last 50 years, judicial decisions and congressional oversight have significantly affected changes to prisoners' ability to access the courts.

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See also: [Antiterrorism and Effective Death Penalty Act of 1996](#); [Constitution as a Source for Prisoners' Rights, The](#); [Habeas Corpus Writs](#)

Further Reading

- Branham, L. S. (2002). *The law of sentencing, corrections, and prisoners' rights* (6th ed.). St. Paul, MN: West.
- Champion, D. J. (1991). Jail inmate litigation in the 1990's. In J. A. Thompson & G. L. Mays (Eds.), *American jails: Public policy issues* (pp. 197–215). Chicago: Nelson-Hall.
- Haas, K. C. (1977). Judicial politics and correctional reform: An analysis of the decline of the "hands-off" doctrine. *Detroit College Law Review*, 4, 796–831.
- Haas, K. C., & Alpert, G. P. (Eds.). (1991). American prisoners and the right of access to the court: A vanishing concept of protection. In K. C. Haas & G. P. Albert (Eds.), *The dilemmas of corrections* (pp. 203–226). Prospect Heights, IL: Waveland Press.
- Hemmons, C., Belbot, B., & Bennett, K. (2004). *Significant cases in corrections*. Los Angeles: Roxbury.

- Jacobs, J. B. (1997). The prisoners' rights movement and its impacts. In J. W. Marquart & J. R. Sorensen (Eds.), *Correctional contexts: Contemporary and classical readings* (pp. 231–247). Los Angeles: Roxbury.
- Meeropol, R., & Head, I. (Eds.). (2010). *The jailhouse lawyer's handbook* (5th ed.). New York: Center for Constitutional Rights. Retrieved from <http://jailouselaw.org/category/chapter-3>
- Palmer, J. D., & Palmer, J. W. (2015). *Constitutional rights of prisoners* (9th ed.). New York: Routledge.
- Schlanger, M. (2015). Trends in prisoner litigation, as the PLRA enters adulthood. *UC Irvine Law Review*, 5(1), 153–179.
- Smith, C. E. (2007). Prisoners' rights and the Rehnquist era. *The Prison Journal*, 87(4), 457–476.
- Thomas, J. (1988). *Prisoner litigation: The paradox of the jailhouse lawyer*. Totowa, NJ: Rowman & Littlefield.
- Trammell, R. (1997, September). Out of bounds: *Lewis v. Casey* redefines rights previously found in *Bounds v. Smith*—seriously undermining prison law libraries and the ability of inmates to seek justice. *AALL Spectrum*, 10–11.
- University of Pennsylvania. (1962). Constitutional rights of prisoners: The developing law. *University of Pennsylvania Law Review*, 110, 985–1008.
- Wallace, D. H. (1997). Prisoners' rights: Historical views. In J. W. Marquart & J. R. Sorensen (Eds.), *Correctional contexts: Contemporary and classical readings* (pp. 248–257). Los Angeles: Roxbury.

Activism

Since the invention of the prison in Europe and later in the United States, a number of individuals and groups have tried to either change correctional policies and practices and/or attempted to cast doubt on the legitimacy of incarceration and have worked to close jails,